

BY AND BETWEEN:

MAARS Global Corporation, a company incorporated under the laws of Bangladesh, having its registered office at [Insert Address] (hereinafter referred to as the "**Supplier**", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns);

AND

Bla Bla Cosmetics, a company/entity registered under the laws of Bangladesh, having its principal place of business at [Insert Address] (hereinafter referred to as the "**Buyer**", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns).

The Supplier and the Buyer are collectively referred to as the "Parties" and individually as a "Party."

1. SCOPE OF AGREEMENT

The Supplier agrees to sell and supply, and the Buyer agrees to purchase, [Insert Description of Goods/Products] (the "Goods") in accordance with the terms and conditions set forth in this Agreement.

2. TERM OF AGREEMENT

This Agreement shall remain in force for a period of **one (1) year** commencing from the Effective Date, unless terminated earlier in accordance with the provisions of Clause 10. The Parties may renew this Agreement upon mutual written consent at least thirty (30) days prior to the expiry of the term.

3. PRICING AND PURCHASE ORDERS

3.1. The prices for the Goods shall be as specified in the Price List attached as Annexure A or as agreed upon in individual Purchase Orders (PO).

3.2. The Buyer shall issue a written Purchase Order for each delivery, specifying the quantity, description, and requested delivery date.

4. PAYMENT TERMS

The Parties agree to the following payment structure:

4.1. **Payment Method:** All payments shall be made via **Bank Transfer** to the Supplier's designated bank account.

4.2. **Advance Payment:** The Buyer shall pay **fifty percent (50%)** of the total invoice value as an advance payment upon the issuance of the Purchase Order.

4.3. **Balance Payment:** The remaining **fifty percent (50%)** of the total invoice value shall be paid by the Buyer immediately **upon delivery** of the Goods and submission of the

delivery challan/invoice.

4.4. Delayed payments shall attract an interest rate of [Insert %] per month on the outstanding amount.

5. DELIVERY AND RISK

5.1. The Supplier shall deliver the Goods to the location specified by the Buyer in the Purchase Order.

5.2. Risk of loss or damage to the Goods shall pass from the Supplier to the Buyer upon physical delivery at the designated location.

5.3. Time is of the essence; however, the Supplier shall not be liable for delays caused by Force Majeure events.

6. INSPECTION AND REJECTION

6.1. The Buyer shall inspect the Goods upon delivery.

6.2. Any claims for shortages or defective Goods must be made in writing within [Insert Number, e.g., 3] business days of delivery. Failure to do so shall constitute irrevocable acceptance of the Goods.

7. REPRESENTATIONS AND WARRANTIES

The Supplier warrants that:

7.1. The Goods supplied shall be of merchantable quality and fit for their intended purpose.

7.2. The Supplier has full legal title to the Goods and they are free from any liens or encumbrances.

8. COMPLIANCE WITH BANGLADESHI LAWS

This Agreement is governed by the laws of the People's Republic of Bangladesh, including but not limited to **The Contract Act, 1872** and **The Sale of Goods Act, 1930**. Both parties shall comply with all applicable tax regulations, including Value Added Tax (VAT) requirements.

9. CONFIDENTIALITY

Both Parties agree to keep confidential all commercial and business information obtained during the course of this Agreement and shall not disclose such information to any third party without prior written consent.

10. TERMINATION

10.1. Either Party may terminate this Agreement by giving thirty (30) days' written notice to the other Party.

10.2. Either Party may terminate this Agreement immediately if the other Party breaches a material term and fails to cure such breach within fifteen (15) days of notice.

11. DISPUTE RESOLUTION

11.1. Any dispute arising out of or in connection with this Agreement shall first be attempted to be settled through mutual negotiation.

11.2. If negotiations fail, the dispute shall be referred to arbitration in accordance with the **Arbitration Act, 2001** of Bangladesh. The venue of arbitration shall be Dhaka, Bangladesh.

12. FORCE MAJEURE

Neither Party shall be liable for failure to perform its obligations if such failure is caused by acts of God, war, strikes, government restrictions, or other causes beyond reasonable control.

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement as of the date first written above.

FOR AND ON BEHALF OF
MAARS GLOBAL CORPORATION (Supplier)

Name:

Designation:

Date:

FOR AND ON BEHALF OF
BLA BLA COSMETICS (Buyer)

Name:

Designation:

Date:

WITNESSES:

1. _____ (Name & Signature)

2. _____ (Name & Signature)
